Appendix F to General Conditions of Tender

Correction Rules for Tender Errors
(General Conditions of Tender Clause GCT 11)

Section 1 - General

1.1 For errors which have been specifically addressed in the General or Special Conditions of Tender, the errors shall be dealt with strictly in accordance with the relevant General or Special Conditions of Tender. The following rules shall only apply where the errors have not been specifically addressed in the General or Special Conditions of Tender.

1.2 Subject to paragraph 1.1 above, where a correction rule provided in Section 2 below is applicable, the errors shall be corrected in accordance with that rule.

1.3 In the event no written correction rule is applicable,

(i) where ambiguity as to the tenderer's true intention exists, it shall be construed by the tender examiner by reference to the best practice or his best judgment; and

(ii) where errors relate to factual information and there is no room for manipulation by a tenderer by virtue of subsequent correction; or where the correction of such errors would not change the tender in substance or the quality of the tender which would give the tenderer an advantage over the other tenderers, the concerned tenderers may be permitted to correct the errors. In other cases, the tender shall be assessed with the errors as submitted.

1.4 For the purposes of these rules, errors include omissions.

Section 2 - Errors in pricing document

2.1 The tendered total of the Prices stated in the Form of Tender shall remain unchanged irrespective of any corrections made hereinafter. If there is a discrepancy between the amount in "words" and in "figures" for the tendered total of the Prices in the Form of Tender, the one that agrees with the figure stated in the Grand Summary of the *activity schedule* shall be taken as the tendered total of the Prices. If neither one agrees with the figure stated in the Grand Summary, the amount in "figures" shall be taken as the tendered total of the Prices. Where either the amount in "words" or the amount in "figures" is left blank or illegible, the remaining one shall be taken as the tendered total of the Prices. **If the amount in "words" and the amount in "figures" for the tendered total of the Prices in the Form of Tender are both left blank or illegible, the tender is invalid**. Subject to the conditions abovementioned, the tendered total of the Prices stated in the Form of Tender shall take precedence over the tendered total of the Prices stated in the Contract Data Part two and the Grand Summary and the same figure shall be correctly reinstated in the latter two documents for any discrepancy. If the tenderer has not inserted the tendered total of the Prices in Contract Data Part two, the tendered total of the Prices in Contract Data Part two shall be corrected to the tendered total of the Prices stated in the Form of Tender.

2.2 If there are errors in the *activity schedule*, they shall be corrected as follows:

(i) Errors in the casting of cash columns in a schedule of the *activity schedule* shall be corrected.

(ii) Not Used

(iii) Not Used

(iv) Where there is no price or an illegible price inserted against any activity in the *activity schedule*, it shall be deemed that the price for the activity has been allowed in prices entered elsewhere in the *activity schedule* and the price shall therefore be marked as zero.

(v) If one or more pages of the *activity schedule* are found missing, subject to sub-paragraph (vii) below, the prices for all activities in the missing page(s) shall be marked as zero and the prices shall be deemed to have been allowed for in prices entered elsewhere in the *activity schedule*.

(vi) Should there be a tender addendum introducing changes to the *activity schedule* but the changes have not been incorporated into the *activity schedule* by a tenderer, then the changes as required by the tender addendum shall be incorporated into the tenderer's *activity schedule* and the prices for those new activities or modified activities shall be determined as follows:

Where new activity is introduced	Price for the new activity shall be marked as zero and the price of the activity shall be deemed to have been allowed for in prices entered elsewhere in the *activity schedule*, unless it is an activity pre-priced by the *Client*. For a pre-priced activity, the same price in the addendum shall be used.
Where the activity description is changed	If a price has been entered against the original activity, the same price shall be used.
Where an activity is deleted	That activity shall be deleted in accordance with the addendum.
Not Used	Not Used
Not Used	Not Used

(vii) Where the *activity schedule* contains any pre-priced activities and the tenderer fails to include any of them correctly in its *activity schedule*, then such sum (or sums) shall be correctly reinstated in the *activity schedule*.

(viii) Where the total of the prices of the additional activities in any schedule of Schedule No. 1 to No. 6 of the *activity schedule* entered by the tenderer exceeds 10% of the total of the prices for that schedule, the total of the prices of the additional activities in the respective schedule shall be corrected to the equivalent value of 10% of the total of prices for that schedule. The difference between the corrected prices and the original prices entered by the tenderer for that schedule shall then be distributed to all activities in that schedule in proportion according to the original prices of those activities entered by the tenderer.

2.3 After correcting all the errors in accordance with paragraph 2.2 above, the difference between:

(i) the tendered total of the Prices stated in the Form of Tender minus the total of the prices for any pre-priced activities, and

(ii) the corrected total of all schedules of the *activity schedule* minus the total of the prices for any pre-priced activities

shall be calculated as a plus percentage of the sum at 2.3(ii) if 2.3(i) is greater than 2.3(ii), or as a minus percentage of the sum at 2.3(ii) if 2.3(i) is less than 2.3(ii).

2.4 Subject to paragraph 2.3, the plus or minus percentage shall be applied to the tendered prices including those corrected under paragraph 2.2 but excluding all pre-priced activities.

2.5 After application of paragraphs 2.1 to 2.4 above, if the corrected total of the prices for Schedule No. 1 of the *activity schedule* exceeds 20% of the corrected total of the prices for all schedules of the *activity schedule*, then the corrected total of the prices for Schedule No. 1 shall be further adjusted to the equivalent value of 20% of the corrected total of the prices for all schedules. The prices of the activities in Schedule No. 1, except for those pre-priced activities, shall be adjusted in proportion according to the prices of those activities before application of this rule. The difference between the adjusted prices and the prices before adjustment for Schedule No. 1 shall then be distributed to other activities in all schedules of the *activity schedule*, except for Schedule No. 5 and Schedule No. 6 and those pre-priced activities, in proportion according to the prices of those activities before application of this rule.

2.6 The tender examiner may adjust the corrected prices for any round-off error in order to match with the tendered total of the Prices stated in the Form of Tender.

2.7 After correcting errors in accordance with the foregoing rules, the summary of all schedules of the *activity schedule* shall be endorsed as follows:

"In accordance with the correction rules set out in Appendix [*insert appropriate reference*] to the General Conditions of Tender as referred to in the General Conditions of Tender Clause GCT 11, all the prices inserted by the tenderer in Schedules No. […] and […] to […] of the *activity schedule* [except those pre-priced activities] shall be corrected by …..% and …..% respectively for all purposes for which those prices may be used under this contract."

2.8 If error is found in the *fee percentage*, it shall be corrected as follows:

(i) If the *fee percentage* inserted by the tenderer in the Contract Data Part two exceeds the *cap of fee percentage* as stated in the Contract Data Part two, it shall be corrected to the *cap of fee percentage*. The Grand Summary including the forecast total of the Prices shall be adjusted accordingly.

(ii) If the *fee percentage* inserted by the tenderer in the Contract Data Part two is a negative percentage or lower than the *minimum fee percentage*, it shall be corrected to the *minimum fee percentage*. The Grand Summary including the forecast total of the Prices shall be adjusted accordingly.

(iii) If the tenderer has not inserted a *fee percentage* in the Contract Data Part two, the *fee percentage* shall be corrected to the *minimum fee percentage*. The Grand Summary including the forecast total of the Prices shall be adjusted accordingly.

(iv) If the *fee percentage* inserted by the tenderer in the Contract Data Part two is illegible, the *fee percentage* shall be corrected to the *minimum fee percentage*. The Grand Summary including the forecast total of the Prices shall be adjusted accordingly.

2.9 Where the Grand Summary contains contingency sum for Defined Cost for compensation events, provisional sum for price adjustment for inflation under secondary Option X1 and provisional sum for performance-tied payment item under Pay for Safety Performance Merit Scheme (PFSPMS) under secondary Option X20 or any combination of them and the tenderer fails to include any or all of them correctly in the Grand Summary, then such sum (or sums) shall be correctly reinstated in the Grand Summary.

2.10 Where the Grand Summary contains contingency sum for Fee for compensation events, and sub-total of all contingency sums and provisional sums or any combination of them and arithmetical errors are found, then errors in calculation of such sum (or sums) shall be corrected in the Grand Summary.

2.11 After correcting all the errors in the manner abovementioned, the forecast total of the Prices shall be corrected to the sum of (i) the tendered total of the Prices in the Form of Tender and (ii) the sub-total of all corrected contingency sums and corrected provisional sums in the Grand Summary.